

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	30-07-2026 17:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	30-07-2026 17:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Home Affairs
विभाग का नाम / Department Name	Central Armed Police Forces
संगठन का नाम / Organisation Name	Central Reserve Police Force (crpf)
कार्यालय का नाम / Office Name	Dte. Genl.
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	HOD Email id : Buyer Email id: gcslr@crpf.gov.in
कुल मात्रा / Total Quantity	1511
वस्तु श्रेणी / Item Category	Under Pant Thermal (MHA) (Q2)
मूल उपकरण निर्माता का औसत टर्नओवर (गत 3 वर्षों का) / OEM Average Turnover (Last 3 Years)	59 Lakh (s)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष / Years of Past Experience Required for same/similar service	3 Year (s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years Of Experience and Turnover	Yes Complete
विक्रेता से मांगे गए दस्तावेज़ / Document required from seller	Experience Criteria, Past Performance, Certificate (Requested in ATC), OEM Annual Turnover, Additional Doc 1 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	4
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
विगत प्रदर्शन /Past Performance	40 %
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/RA Qualification Rule	H1-Highest Priced Bid Elimination
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	5 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
अनुमानित बिड मूल्य / Estimated Bid Value	1964300
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	3.00

ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).

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(a). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

DIGP GC SLR

Group Centre, Central Reserve Police Force (CRPF), Dayapur, Silchar, Cachar, Assam, Pin- 788030.
(Udai Pratap Singh)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई के लिए आरक्षित / Reserved for Make In India products

एमआईआई के लिए आरक्षित / Reserved for Make In India products

Yes

एमएसई के लिए आरक्षित / Reserved for MSE

एमएसई के लिए आरक्षित / Reserved for MSE

Yes

1. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Experience Criteria" as defined above subject to their meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
2. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.
3. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM of the product offered in the bid {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts and delivery acceptance certificates like CRAC to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.
4. OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
5. Bid reserved for Make In India products: : Procurement under this bid is reserved for purchase from Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. However, eligible micro and small enterprises will be allowed to participate. The minimum local content to qualify as a class 1 local supplier is denoted in the bid document. All bidders must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which the bid is liable to be rejected. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020 . In

case Buyer has selected Purchase preference to Micro and Small Enterprises clause in the bid, the same will get precedence over this clause.

6. Procurement under this bid is reserved for purchase from Micro and Small Enterprises having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal. If the bidder wants to avail themselves of the reservation benefit, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible to participate in this bid. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

7. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

8. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 40% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

9. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- i. If number of technically qualified bidders are only 2 or 3.
- ii. If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- iii. In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- iv. If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- v. If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

Under Pant Thermal (MHA) (1511 pieces)

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

तकनीकी विशिष्टियाँ /Technical Specifications

* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Specification	Reference Specifications	As per Letter No. U.II.98(spec)/2024-2025- Prov(revised QR-gloves & thermals)D1A4 dated 23 Oct 2025
	Specification has been seen and understood	Yes
Material and Manufacturing	Material Required and Manufacturing process	As per Clause 2 of the attached document.
	Stitching	As per Clause 3 of the attached document.
Size and Dimensions	Sizes	80, 85, 90, 95, 100, 105
	Dimensions	As per Table 2 of the attached document

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Requirements	Additional and Other requiremets	As per Clause 5 and Table 3A and 3B of the attached document
Marking & Packing	Marking/labelling	As per Clause 7 of the attached document.
	Packag and Packaging	As per Clause 8 of the attached document.

अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

Applicable Specification Document	View
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प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Vikash Kumar	781023,Group Centre CRPF 9th mile PO- American District. Kamrup Assam-781023	1511	90

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Generic

Shelf Life: The Product/Spare parts to be supplied as part of the services must have minimum

18 months

Shelf Life. On the date of supply, minimum

12 months

usable shelf life should be available / balance.

3. Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

4. **Scope of Supply**

Scope of supply (Bid price to include all cost components) : Only supply of Goods

5. **Certificates**

ISO 9001: The bidder or the OEM of the offered products must have ISO 9001 certification.

6. **Warranty**

Warranty period of the supplied products shall be 1 years from the date of final acceptance of goods or after completion of installation, commissioning & testing of goods (if included in the scope of supply), at consignee location. OEM Warranty certificates must be submitted by Successful Bidder at the time of delivery of Goods. The seller should guarantee the rectification of goods in case of any break down during the guarantee period. Seller should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service group in INDIA for attending the after sales service. Details of Service Centres near consignee destinations are to be uploaded along with the bid.

7. **Sample Clause**

After award of contract – Successful Bidder shall have to get advance sample approved from buyer before bulk manufacturing / starting bulk supplies. Successful Bidder shall submit

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samples for Buyer's approval, within 15 days of award of contract. Buyer shall, as per contract specifications framework, either approve the advance sample or will provide complete list of modification required in the sample within 15 days of receipt of advance sample. Seller shall be required to ensure supply as per approved sample with modifications as communicated by Buyer. If there is delay from buyer side in approval of advance sample – the delivery period shall be refixed without LD for the period of delay in sample approval. In case, the sample is found to have major deviations / not conforming to the Contract specifications, the buyer at its discretion may call for fresh samples for approval before allowing bulk supplies or may terminate the contract after notifying the deviations to the seller.

Unless otherwise provided in the contract, all samples required for test shall be supplied by the contractor free of cost. Where under the contract, the contractor is required to submit an advance sample, any expenses incurred by the contractor on or in connection with the production of stores in bulk, before the sample has been approved unconditionally shall be borne by the Seller and he shall not claim any compensation in the event of such sample being found unacceptable by the Buyer / Consignee.

8. **Sample Clause**

For clothing and allied items, if pre-dispatch Inspection clause has been selected in the Bid, the Inspection Agency shall forward sample from the accepted lot duly identified/ sealed by it, as Reference Sample to each consignee (one reference sample per consignee) for comparing the lot received at consignee end with such reference sample. Such reference samples will be treated as part of supplied quantity from the lot and cost shall be borne by the Buyer.

9. **Past Project Experience**

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.**Proof for Past Experience and Project Experience clause:** For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

10. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

1. **Nominated inspection Agency** : On behalf of the Buyer organization, any one of the following Inspection Agency would be conducting inspection of stores before acceptance : Pre-dispatch Inspection at Seller Premises (applicable only if pre-dispatch inspection clause has been selected in ATC) : **NITRA/Textile Committee**. Post receipt inspection at consignee site before acceptance of stores: **Own Board of Officers**.

2. **Data Sheet of the product(s)** offered in the bid are to be uploaded along with the bid documents. Buyers can match and verify the Data sheet with product specifications offered, in case of any un-explained mismatch of technical parameters, the bid is liable for rejection.

3. **Net Worth** : Net Worth of the Bidder should be positive as per the audited financial statement for the FY 2024-25.

4. The bid is reserved for OEM of offered product only. Exemption of turnover to MSE/Startup will be given to the actual OEMs of offered product / brand and not the reseller/trader subject to submission of following documents along with bid:-

a) Plant and machinery required from manufacturers of the product should be under single PAN & GST.

b) Ownership of the plant and machinery required from manufacturing of the product should be duly certified by CA with UDIN number.

c) Udyam/Startup recognition certificate to prove bidder's recognition in trade similar to the tendered item.

5. NSIC Registration certificate / Vendor assessment report & MSME Udyam certificate of the same product i.e. Under pant thermal must upload along with Bid.

6. Bid security declaration should be attached (Proforma given below with bid documents else liable for rejection).

BID SECURITY DECLARATION CERTIFICATE

To,

(Name of Procurement entity) _____ Sir, Tender No. _____ Date _____
Name of Items / Stores : _____ We, M/s, _____ undertake that if we withdraw or modify our bid during the period of bid's validity, or if we are awarded the contract and we fail to sign the contract, or fail to submit a Performance Security Deposit as per terms and conditions of T/E as well as A/T before the deadline defined in bids document, then we are liable to be suspended for the period of 02 years from being eligible to participate and submit bids for the T/E or any contract with the Procurement Entity (CRPF).

Yours faithfully

(Signature of the Authorized Signatory of Bidder, with Official Seal)

7. **Pre-dispatch inspection** : Pre-dispatch inspection at Seller premises (Fee/Charges to be borne by the SELLER), Before dispatch, the goods will be inspected by **NITRA/Textile Committee** at Seller Premises for their compliance to the contract specifications. Fee/Charges taken by the External inspection Agency (**NITRA/Textile Committee**) and any external laboratories testing charges shall be borne by the Seller. For in house testing, the Sellers will provide necessary facilities free of cost. Seller shall notify the Buyer through email about readiness of goods for pre-dispatch inspection and Buyer will notify the Seller about the conveying of approval for external inspection agency (**NITRA/Textile Committee**). The goods would be dispatched to Consignee only after clearance in Pre-Dispatch Inspection. Consignee's right of rejection as per GTC in respect of the goods finally received at his location shall in no way be limited or waived by reason of the goods having previously been inspected, tested and passed by Nominated External Inspection Agency (NITRA/Textile Committee) prior to the goods' shipment. While bidding, the sellers should take into account 15 days for Inspection from the date of email offering the goods for inspection. Any delay in conducting inspection shall on the part of the buyer and shall be regularized without Liquidated damages. Cost of inspection shall be factored in by the supplier in the cost of the product itself while submitting bid. Following are tests that are required to be conducted during pre-dispatch inspection of "Under pant thermal".

DECLARATION FOR INSPECTION AGENCY (PDI)

I, (Name & Designation) of M/s, (Name of firm) hereby declare that, I have understood that as per bid documents at column "Inspection Required", it is mentioned "No" which is due to non-availability of name of the Inspection Agency at GeM System. I, understand that, in fact inspection is required and I have read the conditions mentioned in Bid Specific Additional Terms and Conditions (including Buyer Added text based ATC clauses & Buyer uploaded ATC documents) and agree to get the stores inspected before dispatch(PDI) from **NITRA/Textile Committee (Mechanical / Chemical testing)**.

Signature.....

Name of firm M/s.....

Designation..... (with seal & stamp)

8. After award of contract : Successful bidder shall have to get advance sample approved from buyer before bulk manufacturing / starting bulk supplies. The successful bidder (L-1 firm) must submit the valid lab test report from **NITRA/Textile Committee** alongwith advance sample for the approval sample. Lab report submitted at the time of bid, advance sample or PDI should bear ULR NO in compliance of NABL letter No. NABL/ANCMT/2021/12/13- 01 dated 13/12/2021.

9. Arbitration Clause : as per rule. (A shelf undertaking certificate must be uploaded alongwith bid documents in Bidders official letter head regarding acceptance of Arbitration Clause).

10. Same or Similar Category Product : To fulfil Experience Criteria and Past Performance Criteria, Under pant thermal, Vest Woollen, Under Pant Woollen, Jersey Woollen, Coat Combat, Glove Knitted & Balacava only supplied during the last three financial year i.e. 2023-24, 2024-25 & 2025-26 will be accepted as same or similar Category product.

11. Bidder should submit a certificate abiding Code of Integrity for Public Procurement (CIPP) Rule 175 of GFR 2017 & Rule-3.2 of Manual for Procurement of Goods 2017) in firm's letter head along with bid documents, else liable for rejection/disqualification for further proceedings.

12. Annual GST returns of the last 03 financial years (i.e. 2022-23, 2023-24 & 2024-25) must be uploaded with the bid else liable for rejection.

13. No unwarranted document be uploaded in the bid documents. Please upload only required documents in single copy to avoid wastage of time, energy and stationery.

14. OEM must submit complete certificates/Test reports on the date of bid opening (to be uploaded with bid): Complete test report test report meeting all the required parameters within tolerance limit is available as per approved QRs/Specifications from any Government lab or NABL accredited lab, not older than 03 years from the bid opening date.

15. OEM should submit an undertaking that business dealings with its firm have not been banned by any Min/Deptt. of Supply/Min. of Home affairs during the currency of Bid.

16. OEM will upload a self-declared certificate on its letter head stating that its firm has not been blacklisted by any Govt/PSU agencies during last three years and also not under liquidation / Court receivership / similar proceedings.

17. OEM must supply of Under pant thermal conforming to QR/Specification Directorate General, CRPF vide letter No. U.II-98(Spec)/2024-25- Prov (revised QR-gloves & thermals) dated 23/10/2025. Also a undertaking certificate must be upload alongwith bid document for acceptance of the condition.

18. Purchaser's Description :

a) Purchaser reserves the right to change the consignee and change the quantity of stores allowed to them as per requirement at any stage.

b) Purchaser reserves the right to cancel/reject or Scrap the tender without assigning any reason.

c) Purchaser reserve the right to increase/decrease the quantity of store at any stage in accordance with Rule 7.6.4 of Manual of Procurement of Goods-second edition-2024.

d) Purchaser reserve the right to get manufacturing capacity of all firms re-verified irrespective of the registration.

19. OEM must upload Factory License to prove that the bidder is OEM be submitted alongwith bid documents. Address in factory license, MII, GST, VAR, Udyam etc should be same.
20. OEM must submit an undertaking on bidders official letter head for supply of all sizes {i.e. 80,85, 90, 95, 100, 105 Cms) as per requirement of buyers.
21. OEM should submit a MII certificate showing clear percentage of local contents with details of locations where this value addition is made alongwith bid documents.
22. OEM are required to furnish an undertaking alongwith bid documents that their offered product is meeting all the required parameters & drawing of QRS/Specification specified in the Bid.
- 23. Termination of Contract :** Time shall be the essence of the contract. The purchaser shall have the right to terminate this Contract without any notice in part or in full in any of the following cases :
- The delivery of the material is delayed for causes not attributable to force majeure after the scheduled date of delivery.
 - The Seller is declared bankrupt or becomes insolvent.
 - The delivery material is delayed due to causes of Force Majeure by more than 90 days.
 - In case Performance Bank Guarantee (PBG) is not furnished within 15 days from the date of issuance.
24. OEM are required to submit, Contract copy, CRAC, Inspection notice etc, In support of Past Performance and experience clause mentioned in the bid documents. Performance Statement (on letter head of bidder) Name of bidder..... Sl./ No. Organization which placed purchase Order to bidder mention order No. & date. Items/Service name in details Quantity HSN Code Value in Rs. CRAC / Inspection Note / Installation certificate No. & date.
- 25. Liquidated Damages :** If the seller fails to deliver any or all of the goods /services within the original/re-fixed delivery periods specified in the contract, the buyer will be entitled to deduct/recover the liquidated damages for the delay, unless covered under Force majeure conditions of aforesaid, @0.5 (Half) percent of the prices of any portion of stores delivered late, for each week or part thereof of delay. The total damages shall not exceed 10 (ten) percent of the value of delayed goods as per para 9.3.9 of manual for procurement of goods 2024.
- 26. Price Fall Clause :** Bidder must upload a undertaking certificate (as part of Fall clause) that they have not sell and will not sell the same item at prices lower than the bid price: " I/We certify that there has been no reduction in sale price of the stores of description identical to the stores supplied to the Government under the contract herein and such stores have not been offered /sold by me/us to any person /organization including the purchaser or any Department of Central Government or any office of Central Reserve Police Force or any Central Reserve Police Force undertaking as the case may be up to the date of bill at a price lower than the price charge to the Government under the contract".
- Signature.....
- Name of firm M/s.....
- Designation..... (with seal & stamp)
- 27. Back loaded of Stores :** In case of supplier doesn't lift the rejected goods within the stipulated time, a ground rent (say at 0.2% to 5% per day of the value of goods as per contract. If the supplier doesn't respond within a reasonable time, under intimation to the supplier, to recover its duties.
- 28. Exemption to Start-ups in Past Performance Criteria :** Since start-ups have been given relaxation in "Experience Criteria", they are also exempted from meeting the "Past Performance Criteria" in the instant bid process.
- 29. Cartel Formation/Bid Rigging :** The bidders(s) should submit an undertaking on their letter head that they will not indulge in cartel formation/anti-competitive practices as per provisions mentioned at Para-7.6.8 of Manual for Procurement of Goods, Second Edition-2024. Further, purchaser's reserves the right to take appropriate action against the bidders/tenderers found to be involved/indulged in Cartel Formation/Anti-Competitive practices as per provisions specified in Manual of Procurement of Goods, Second Edition-2024.

30. **Vendor code creation** :- Bidder shall submit the following documents alongwith their bid for Vendor code creations:

- i. Copy of PAN Card.
- ii. Copy of GSTIN
- iii. Copy of Cancelled Cheque
- iv. Copy of EFT mandate duly certified by Bank.

31. **Franking Clause** : As per rule 9.4.6 of MoPG 2024. (A shelf undertaking certificate must be uploaded alongwith bid documents in Bidders official letter head regarding acceptance of Franking Clause).

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of

this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---